



CHAPTER xxxii.

An Act to empower the mayor aldermen and burgesses of the county borough of Stockport to provide and work trolley vehicles and for other purposes.

A.D. 1912.

[7th August 1912.]

WHEREAS the county borough of Stockport (in this Act called "the borough") is a municipal borough under and subject to the Municipal Corporations Act 1882 and is also a county borough under the Local Government Act 1888 and the mayor aldermen and burgesses of the borough (in this Act called "the Corporation") acting by the council are the urban sanitary authority for the district of the borough and are also the local authority and road authority for the same district within the meaning of the Tramways Act 1870 :

And whereas by the Stockport Corporation Act 1899 certain powers were conferred upon the Corporation for purchasing taking on lease and working tramways within and outside the borough :

And whereas by the Stockport Corporation Act 1900 and the Stockport Corporation Tramways Order 1902 the Corporation were authorised to lay down within the borough the tramways in that Act and Order mentioned and the powers therein contained were conferred on the Corporation in respect of the said tramways :

And whereas the Corporation under the powers of the said Acts and Order are working tramways within and without the borough :

And whereas better means of communication are required between the centre of the borough and certain outlying districts and it is expedient that the Corporation should be authorised to provide and run trolley vehicles moved by electrical power

A.D. 1912. — transmitted thereto from some external source along the route in this Act described:

And whereas the powers contained in this Act will increase the public utility and convenience of the existing tramway system of the Corporation and will be of public and local advantage and it is expedient that the same be conferred upon the Corporation:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follow:—

For the provision of electrical equipment and the construction of other works necessary for the purpose of working trolley vehicles and in connection with the undertaking by this Act authorised three thousand five hundred pounds;

For the provision of trolley vehicles four thousand pounds:

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas it is expedient that the Corporation should be authorised to raise moneys for the purposes mentioned in this Act:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

And whereas an absolute majority of the whole number of the council at a meeting held on the sixth day of December one thousand nine hundred and eleven after ten clear days' notice by public advertisement of the meeting and of the purpose thereof in the *Cheshire County News* a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning that meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and rates leviable within the borough:

And whereas that resolution was published twice in the said local newspaper and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in

pursuance of a similar notice on the third day of January one thousand nine hundred and twelve being not less than fourteen days after the deposit of the Bill for this Act in Parliament: A.D. 1912.

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited for all purposes as the Stockport Corporation Act 1912. Short title.

2. The following provisions of the Tramways Act 1870 shall so far as the same are applicable to the purposes of and are not varied by or inconsistent with this Act be incorporated with and form part of this Act and such provisions shall be read and have effect as if the works to be constructed in the footpaths or carriageways of the streets for running trolley vehicles by electrical power were tramways and as if trolley vehicles were carriages used on tramways:— Application of certain provisions of Tramways Act 1870.

Section 3 Interpretation of terms.

Part II Relating to the construction of tramways
(except sections 25 28 and 29).

Section 41 Tramways to be removed in certain cases.

Section 45 Tolls &c.

Section 46 Byelaws by local authority Promoters may make certain regulations.

Section 47 Penalties may be imposed in byelaws.

Section 48 Power to local authority to license drivers conductors &c.

Section 49 Penalty for obstruction of promoters in laying out tramway.

Section 51 Penalty on passengers practising frauds on the promoters.

Section 52 Transient offenders.

Section 53 Penalty for bringing dangerous goods on the tramway.

Section 55 Promoters or lessees to be responsible for all damages.

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Section 56 Recovery of tolls penalties &c.

Section 57 Right of user only.

Section 60 Reserving powers of street authorities to widen &c. roads.

Section 61 Power for local or police authorities to regulate traffic in roads.

Interpreta-
tion.

3. In this Act unless the subject or context otherwise requires—

“The borough” means the county borough of Stockport;

“The Corporation” means the mayor aldermen and burgesses of the borough acting by the council;

“The borough fund” and “borough rate” mean respectively the borough fund and borough rate of the borough;

“The undertaking” means the undertaking by this Act authorised;

“Trolley vehicles” are mechanically propelled vehicles adapted for use upon roads and moved by electrical power transmitted thereto from some external source;

“The Act of 1899” means the Stockport Corporation Act 1899;

“The Act of 1900” means the Stockport Corporation Act 1900;

“The Order of 1902” means the Stockport Corporation Tramways Order 1902 confirmed by the Tramways Orders Confirmation (No. 1) Act 1902;

“Statutory borrowing power” shall have the same meaning as that assigned to it by the Act of 1899:

Words and expressions to which meanings are assigned by enactments incorporated with this Act have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction.

Power to
use trolley
vehicles.

4. Subject to the provisions of this Act the Corporation may provide maintain and equip (but shall not manufacture) trolley vehicles and may use the same upon a route wholly within the borough commencing in Mersey Square at the car shed belonging to the Corporation and passing thence through Mersey Square St. Peter's Square St. Petersgate Market Place Churchgate Spring Gardens Hall Street and terminating at the borough boundary in Offerton Lane.

5.—(1) The Corporation may in under or over the surface of the streets or roads along or adjoining those along which they are or may be authorised to run trolley vehicles or in which it may be necessary so to do in order to connect the apparatus and equipment for working such vehicles with any generating station place erect and maintain all necessary and proper standards brackets conductors mains cables wires posts poles and any other necessary or convenient apparatus and equipment for the purpose of working trolley vehicles by electrical power and may for that purpose subject to the provisions contained in Part II. of the Tramways Act 1870 and to the provisions of this Act open and break up any such street or road and any sewers drains water or gas pipes tubes wires telephonic and telegraphic apparatus therein or thereunder.

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As to electrical works.

(2) Nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply.

6.—(1) In the exercise of the powers of this Act the Corporation may use so much of the existing tramway belonging to the Corporation and in lease to the lord mayor aldermen and citizens of the city of Manchester (hereinafter in this section referred to as "the Manchester Corporation") and the electrical equipment thereof as extends from Mersey Square to St. Petersgate in the borough.

Power to use tramway and equipment of Manchester Corporation.

(2) Such user as aforesaid shall be subject to the rights and interests of the Manchester Corporation and shall be exerciseable on such terms and conditions as shall be agreed between the Corporation and the Manchester Corporation or in case of difference as shall be determined by the Board of Trade or at the option of that Board by an arbitrator to be appointed by that Board.

7. Subject to the provisions of this Act the Corporation shall have the exclusive right of using any apparatus provided erected or maintained by them for the purpose of working trolley vehicles and any person except by agreement with the Corporation using the said apparatus shall for every offence be liable to a penalty not exceeding twenty pounds.

Corporation to have exclusive right of using apparatus for working trolley vehicles.

8. If the electrical equipment and apparatus for the working of trolley vehicles on the route by this Act authorised be not placed and erected within five years from the passing of this

Period for completion of trolley vehicle apparatus.

A.D. 1912, Act then on the expiration of that period the powers by this Act granted to the Corporation for placing and erecting the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Vehicles not to be deemed light locomotives or motor cars.

9. Subject to the provisions of this Act trolley vehicles shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 or of the byelaws and regulations made thereunder nor shall they be deemed to be motor cars within the meaning of the Motor Car Act 1903 except for the purpose of sections 1 and 6 of that Act and neither the regulations made under that Act nor the enactments mentioned in the schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 shall apply to trolley vehicles.

As to licence duties on trolley vehicles.

10. Nothing in this Act shall in any way affect the duties of excise now payable by law on licences to be taken out for trolley vehicles as carriages or light locomotives or hackney carriages.

Approval of vehicles and equipment by Board of Trade.

11. Trolley vehicles and the working equipment shall be of such form weight construction and dimensions as the Board of Trade may approve and no trolley vehicle shall be used by the Corporation which does not comply with the requirements of the Board of Trade. No post or other apparatus shall be erected on the carriageway of any street or road except with the consent of the Board of Trade.

Fares rates and charges.

12.—(1) Trolley vehicles may be used for the carriage of passengers and personal luggage carried by passengers and not exceeding twenty-eight pounds in weight.

(2) The Corporation may demand and take in respect of the carriage of passengers upon trolley vehicles fares rates and charges not exceeding the fares rates and charges which the Corporation could have charged if such vehicles had been carriages upon the tramways of the Corporation.

(3) The Corporation may demand and take in respect of the carriage of parcels upon trolley vehicles rates and charges not exceeding the rates and charges which the Corporation could have charged for the carriage of parcels if such vehicles had been carriages upon the tramways of the Corporation.

Payment of fares rates and charges.

13. The fares rates and charges which the Corporation are empowered to charge under the provisions of this Act shall be paid to such persons and at such places upon or near to the

trolley vehicles and in such manner and under such regulations as the Corporation may by notice to be annexed to the list of fares rates and charges appoint. A.D. 1912.

14.—(1) If the Corporation desire to use trolley vehicles upon any road as defined by the Tramways Act 1870 within the borough (other than the streets or roads in this Act hereinbefore referred to) they may make application to the Board of Trade describing the route and the Board of Trade shall be and are hereby empowered to make a Provisional Order authorising the use of trolley vehicles upon any road or roads described in the application. Board of Trade may authorise new routes.

(2) No such application shall be entertained by the Board of Trade unless the Corporation shall—

(a) Have published once in each of two successive weeks in the months of October or November notice of their intention to make such application in some newspaper or newspapers circulating in the borough;

(b) Have posted for fourteen consecutive days in the months of October or November in conspicuous positions in each of the roads to which such application relates a notice of their intention to make such application;

and each such notice shall state the time and method for bringing before the Board of Trade any objections to the grant of such application.

(3) The Board of Trade may and they are hereby empowered to prescribe the procedure with respect to any application for a Provisional Order under this section.

(4) The Board of Trade shall consider any such application and may if they think fit direct an inquiry to be held in the borough in relation thereto or may otherwise inquire as to the propriety of proceeding upon such application and they shall consider any objection to such application that may be lodged with them in accordance with the prescribed procedure and shall determine whether or not it is expedient and proper that the application be granted either with or without addition or modification or subject or not to any restriction or condition.

(5) In any case where it shall appear to the Board of Trade expedient and proper that the application be granted they may settle and make a Provisional Order authorising the same and shall as soon as conveniently may be thereafter procure a Bill

A.D. 1912. to be introduced into either House of Parliament for an Act to confirm the Provisional Order which shall be set out at length in the schedule to the Bill and until confirmation with or without amendment by such Act of Parliament a Provisional Order under this Act shall not have any operation.

(6) If while any such Bill is pending in either House of Parliament a petition is presented against any Provisional Order comprised therein the Bill so far as it relates to the Order petitioned against may be referred to a Select Committee and the Petitioner shall be allowed to appear and oppose as in the case of a Bill for a special Act.

The Act of Parliament confirming a Provisional Order under this Act shall be deemed a Public General Act.

(7) The making of a Provisional Order under this section shall be *prima facie* evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Provisional Order have been complied with.

(8) Any expenses incurred by the Board of Trade in connection with the preparation and making of any such Provisional Order and any expenses incurred by the Board of Trade in connection with any inquiry under this section shall be paid by the Corporation.

(9) Provided that any Provisional Order to be obtained by the Corporation under the Tramways Act 1870 authorising the construction of tramways in the borough may authorise the Corporation to use trolley vehicles upon all or any of the streets or roads along which such tramways are authorised to be constructed in lieu of and pending the construction thereof.

Trolley vehicles to be part of tramway undertaking of Corporation.

15. Subject to the provisions of this Act trolley vehicles and the apparatus in connection therewith shall for all purposes be deemed to form part of the tramway undertaking of the Corporation.

Application of existing regulations and byelaws.

16. All subsisting regulations and byelaws relating to the tramways of the Corporation made in pursuance of the provisions of the Tramways Act 1870 or of the Act of 1899 the Act of 1900 and the Order of 1902 so far as the same are applicable shall with the necessary modifications apply to the trolley vehicles provided by the Corporation in pursuance of this Act.

Applying certain provisions of local Acts.

17. The following provisions of the Act of 1899 the Act of 1900 and the Order of 1902 shall extend and apply to and for the purposes of this Act as if those provisions were with all

necessary modifications re-enacted in this Act Provided that in the application of such provisions the same shall be read and have effect as if a trolley vehicle system were a tramway :— A.D. 1912.

Of the Act of 1899—

- Section 7 Lease of tramways outside borough.
- Section 8 Power to Corporation to work tramways.
- Section 9 Power for local authority to reconstruct tramways.
- Section 10 Power to combine with other authorities.
- Section 11 Further provisions as to exercise of running powers.
- Section 14 Provisions as to motive power (as amended by this Act).
- Section 15 Power to generate electricity.
- Section 16 Special provisions as to use of electric power.
- Section 18 Byelaws in case of use of mechanical power.
- Section 19 Power to make and maintain openings and works.
- Section 21 Amendment of Tramways Act 1870 as to byelaws by local authorities.
- Section 22 Orders &c. of Board of Trade.
- Section 127 Power to appropriate lands for purposes of Act.
- Section 130 Officers may institute proceedings.
- Section 137 Penalties to be paid over to treasurer.
- Section 138 Damages and charges to be settled by justices.
- Section 140 Audit of accounts.

Of the Act of 1900—

- Section 7 Inspection by Board of Trade.
- Section 9 Provisions as to construction of tramways.
- Section 22 Power to carry animals goods &c. on tramways.
- Section 23 Animals and goods.
- Section 25 Corporation not bound to carry animals and goods.
- Section 27 Cheap fares for labouring classes.

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Section 33 Amendment of section 19 of Stockport Corporation Act 1899.

Section 39 Power to acquire patent rights.

Section 41 Provisions as to arbitration.

Section 42 Lands by agreement.

Section 53 Incorporation of section 265 of Public Health Act 1875.

Section 55 Inquiries by Local Government Board.

Of the Order of 1902—

Section 11 Mechanical power works to be subject to s. 30 of Tramways Act 1870.

Section 12 For protection of Postmaster-General.

Section 13 Form and delivery of notices.

Accounts.

18. In the accounts of the Corporation relative to their tramway undertaking the receipts and expenditure upon and in connection with trolley vehicles shall (as far as may be reasonably practicable) be distinguished from the receipts and expenditure upon or in connection with the remainder of such undertaking.

Use of tramway posts by Postmaster-General.

19.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Corporation in connection with the trolley vehicles authorised by this Act or by an Order under this Act (in this section referred to as “the trolley vehicles”) and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

(a) In placing maintaining or altering such telegraph no obstruction shall be caused to the working or user of the trolley vehicles:

(b) The Postmaster-General shall give to the Corporation not less than twenty-eight days’ notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers

and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as hereinafter provided :

- (c) Unless otherwise agreed between the Postmaster-General and the Corporation the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expenses of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the trolley vehicles or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Corporation or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section :
- (d) Unless otherwise agreed or in case of difference determined as hereinafter provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference as to the conditions of attachment shall be determined as hereinafter provided :
- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road :
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair :
- (g) The Postmaster-General shall make good to the Corporation and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the

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Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Corporation their officers or servants:

(h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Corporation and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Corporation or failing agreement determined as hereinafter provided:

(i) The Corporation shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the trolley vehicles or by any accident arising thereon or by the authorised use by the Corporation of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Corporation their officers or servants:

(j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days' notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Corporation the value of the same Provided that if the Corporation or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as hereinafter provided.

(2) Nothing in this section contained shall prevent the Corporation from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connection with their trolley vehicles or other municipal under-

takings or shall take away any existing right of the Corporation of permitting the use by any company or person of their posts standards or brackets in connection with the lighting of the streets or otherwise Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as hereinafter provided. A.D. 1912.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression “the Corporation” includes any person owning working or running trolley vehicles;

The expression “telegraph” has the same meaning as in the Telegraph Act 1869;

Other expressions have the same meaning as in the Telegraph Act 1878.

20. The Corporation shall perform in respect of trolley vehicles all the services in regard to the conveyance of mails which are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway as defined by that Act and authorised as in that Act stated. Conveyance of mails.

21. The regulations authorised by the Tramways Act 1870 to be made by the promoters of any tramway and their lessees may with respect to any of the trolley vehicles be made by the Corporation alone. Regulations.

22. If any person wilfully does or causes to be done with respect to any apparatus used for or in connection with the working of the trolley vehicles anything which is calculated to obstruct or interfere with the working of such trolley vehicles or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence shall be liable to a penalty not exceeding twenty pounds. Penalty for malicious damage.

23.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following Power to borrow.

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A.D. 1912. table the respective sums mentioned in the second column thereof and they shall pay off all money so borrowed within the respective periods mentioned in the third column of the said table (namely):—

Purpose.	Amount.	Period for Repayment.
(a) For the provision of electrical equipment and the construction of other works necessary for the purpose of working trolley vehicles.	£ 3500	Twenty years from the date or dates of borrowing.
(b) For the provision of trolley vehicles	4000	Ten years from the date or dates of borrowing.
(c) For paying the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for any of the purposes of this Act or any Provisional Order made under the section of this Act the marginal note whereof is "Board of Trade may authorise new routes" and any money borrowed under this subsection shall be repaid within such period as that Board may prescribe.

(3) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge—

The revenue of the tramway undertaking of the Corporation and the borough fund and borough rate or either of those securities.

Application
of sections of
Act of 1899
as to borrow-
ing.

24. The following provisions of the Act of 1899 shall (with the necessary modifications and subject to the provisions of this Act) extend and apply mutatis mutandis to the moneys borrowed under this Act (namely):—

Section 108 Mode of raising money.

Section 109 Certain regulations of Public Health Acts not to apply.

Section 110 Application of provisions of Public Health Act as to mortgages.

Section 111 Mode of payment off of money borrowed.

Section 112 Sinking fund.

Section 113 Protection of lender from inquiry.

Section 114 Corporation not to regard trusts.

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Section 115 Appointment of receiver.

Section 117 Return respecting sinking fund to Local Government Board.

25.—(1) The Corporation shall have power—

Power to
re-borrow.

(a) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) By instalments or annual payments; or

(b) By means of a sinking fund; or

(c) Out of moneys derived from the sale of land; or

(d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Section 116 (Power to re-borrow) of the Act of 1899 is hereby repealed but without prejudice to anything done or suffered to be done thereunder.

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Amendment of
s. 14 of Act of
1899 and s. 12
of Order of
1902.

26. The provisions of section 14 (Provisions as to motive power) of the Act of 1899 and of section 12 (For protection of Postmaster-General) of the Order of 1902 shall apply to the carriages used on any tramways in lease to the Corporation as well as on tramways purchased or acquired by the Corporation.

Recovery of
penalties.

27. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Judges not
disqualified.

28.—(1) A judge of any court or a justice shall not be disqualified from acting in the execution of this Act or any other local Act by reason of his being liable to any rate.

(2) Section 139 (Judges not disqualified) of the Act of 1899 is hereby repealed.

Costs of Act.

29. The costs charges and expenses preliminary to and of and incidental to preparing obtaining and passing this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

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